Privacy Policy



Effective Date: May 25, 2012

Last Updated: April 1, 2020

Welcome to www.smartkidzclub.com ("Site").

This Privacy Policy outlines what information is collected through the Site and how that information is used. Smart Kidz Club, Inc. ("Owner") owns and operates the Site. Owner will only keep users' or viewers' of the Site (collectively, "Users" and each a "User") information, which they submit through the Site, for its own internal use.

This Privacy Policy is incorporated into the Terms and Conditions of the Site. By agreeing to the Terms and Conditions of the Site, you have also agreed to be bound by this Privacy

Policy. In addition, by using this Site, you have agreed to this Privacy Policy.

Revisions to this Policy

The Owner reserves the right to revise, change, amend, alter or modify ("Update") this Privacy Policy and its other policies and agreements at any time and in any manner. The User is responsible for periodically checking for any Updates of this Privacy Policy by re-visiting the Site and using the "refresh" button on the User's browser. Any Updates supersede any prior versions immediately upon posting on the Site. If the User does not agree with the terms of this Privacy Policy, or any updated terms hereto, his sole remedy is to avoid use of the Site.

Information Collected

Similar to other websites, the information which the Owner collects through the Site may include personally identifiable information ("Personal Information") which refers to information that helps it identify the Registered User (as defined

below). The Personal Information includes data such as a Registered User's name, street address, phone number, email address, username and password, demographic information about the User such as his age and/or gender. In addition, the Owner may collect and store information relating to the Registered User's geographic location, which shall also be included in "Personal Information." Users are responsible for keeping all Personal Information current and may change any previously entered information through the Site in the manner set forth below.

Data may also be collected through the Site that cannot be traced back to a specific individual ("Anonymous Information"). For example, the Owner may be able to keep count of how many Users have viewed the Site and specific content therein, key words utilized to find the Site or key words utilized to search within the Site, but this information does not necessarily include information regarding Users' names, street addresses, phone numbers or email addresses. Users who view Site but do not enter their Personal Information are generally anonymous Users. Only Anonymous Information will be intentionally

collected by the Owner from anonymous Users.

The Site may use browser cookies to collect Anonymous Information. The Site may also incorporate web beacons or similar tracking technologies to allow the Owner to track how the Site is used. Such technologies are used to collect Anonymous Information, e.g. the name of the User's internet service provider, the IP address of the User's computer, User's browser software and operating system, the identity of any linked-form or linked-to website and other similar information. The Owner may combine a User's Anonymous Information with similar information collected from other Users to help improve the Site and the Owner's products and services. User may be able to deactivate cookies by changing his browser settings. If User deactivates the cookies, User may not have access to all of the Site's features and/or limited function relating to same.

The Owner may also keep track of which products or services the User purchases and/or uses. Notwithstanding the foregoing and

where the User purchases advertising and/or other products or services offered by the Site, the Owner does not currently knowingly store credit card numbers on its servers. All credit card information and identifying information is processed through an independent third-party ("Payment Processor"), and not through the Site. Accordingly, Owner cannot attest to or otherwise be responsible for the acts of the Payment Processor, including without limitation, its collection and use of information. User acknowledges that it is solely User's responsibility to investigate the Payment Processor's policies and to ensure that User is satisfied with the same. User provides his information to the Payment Processor at his own risk. Moreover, solely the User will be responsible for complying with the terms and conditions of the User's agreement with the Payment Processor, which may include, but is not limited to, the way the Payment Processor collects information, the manner in which they process payments and the duties and obligations that the User has with the Payment Processor. The Owner does not know of the policies of independent third-parties, including the Payment Processor, and is not responsible for the information collected or how the information is

used by any third-parties, including, without limitation, the Payment Processor.

If the User believes that he has been mistakenly billed, the User has the duty and obligation to notify the Payment Processor immediately of such error. The User must review the Payment Processor's policy with regard to their notice requirement. The User releases the Owner and the Site from all liabilities and claims of loss resulting from any error or discrepancy in billing.

Registered Users

A User may only become a registered member of the Site ("Registered User") if he is above the age of eighteen (18) years old. In that regard, the Site does not knowingly collect information from children under the age of eighteen (18) years old. In the process of becoming a Registered User, User may be asked to provide certain Personal Information, including his name, zip code, address, telephone number, email address, a unique login name, password and

password validation, and/or a password hint to help the User remember his password. This information is collected within the registration process, in order to allow for greater ease in the Registered User utilizing the Site and its interactive features; to allow the Owner and the Site to identify the Registered User; to allow the Owner to contact the Registered User for customer service purposes, if necessary; and to allow the Owner and/or Site to offer and provide products and/or services. In addition, Owner may request Registered User's email address to confirm new member registration and to enable email or other electronic communications to be made through the Site. Moreover, Owner and/or the Site may utilize a Registered User's email address to send updates, newsletters, news, promotional offers, advertisements or any other information regarding the Site and/or Owner to the Registered User. In the event that Registered User no longer wishes to receive such emails, he may "opt-out" by accessing his User account through the Site. Owner may utilize Registered User's Personal Information to personalize the Registered User's experience including, without limitation,

displaying relevant advertisements to the Registered User.

Registered Users may be providing more Personal Information than general Users to the Site, and by becoming a Registered User, Registered User assumes all risk, and agrees to these terms with regard to all of the information that the Registered User submits through the Site.

Third Party Advertisers and Links to Third Party Websites

The Site may include advertisements from third-party companies, which may include links to third-party websites. The advertisements placed by these companies or other Users, are not affiliated, owned, maintained or updated by the Owner. If User visits the websites of these third-party advertisers, or otherwise submits information to any other User, they may use cookies and/or request and collect User's Personal Information. The Owner does not know of the

policies of these independent third parties, including without limitation, other Users, and is not responsible for the information collected or how the information is used by any third-party advertisers, including without limitation, other Users. The Owner also cannot confirm or in any way guarantee the accuracy of the information provided by those third-party advertisers on their websites. The Owner strongly recommends that User reads and reviews the privacy policies of any other third-party websites that it may view.

Information Sharing

Except as otherwise provided in this Privacy Policy, the Owner will not intentionally distribute, rent or sell a User's Personal Information to third parties without the User's permission. Notwithstanding the foregoing, Owner will share Users' information, including without limitation Personal Information amongst its parent companies, subsidiaries, affiliates and other related entities and related websites. The User acknowledges and agrees that the Owner may use the Personal Information to contact the

User and to solicit the User for products and/or services offered by the Owner.

Information about the Users of the Site, which include the Users' Personal Information, may be disclosed in association with certain business dealings such as any debt financing, acquisition or merger, sale of assets and in the event of a bankruptcy, assignment for benefit of creditors or receivership in which particular information could be sold or transferred to other parties as an asset.

It is the Owner's policy to not use or share the Personal Information of Users of the Site in ways which have not been outlined or described herein without first allowing its Users a chance to opt out or otherwise disallow such unrelated uses. However, the Owner may disclose Personal Information about its Users or information relating to their Use of the Site for any reason if, in its sole discretion, it determines that it is reasonable to do so, including, without limitation:

1. To comply with laws, such as without limitation, the Electronic Communications Privacy Act, regulations or governmental or legal requests for such information;
2. To reveal information that is needed to identify, contact or bring legal action against any User who may be violating the terms and conditions of the Site;
3. To operate the Site properly;
4. To protect the Site and its Users; and/or
5. To fully cooperate with law enforcement authorities, private-party litigants and others seeking information about its Users to the extent required by applicable law.

Security Procedures

The Owner undertakes reasonable efforts to operate secure data networks, which are protected by industry standard firewall and password protection systems. The Owner undertakes reasonable efforts to review its security and privacy policies on a periodic basis and it may

adjust and change the systems as necessary. Notwithstanding the above, and although the Owner is diligent in its security pursuits, it cannot guarantee the success of its efforts. Owner undertakes no duty to provide notice to any Users of a security breach, unless otherwise required to do so by law.

Protection of Children

This Site should not be used by Users under the age of majority in the State from where the User is accessing this Site. The Owner shall make reasonable effort to ensure that this Site contains sufficient warnings to make it obvious that its content is not intended for Users under the age of eighteen (18) and that they are not welcome to access this Site. However, there is no substitute for proper parental supervision of children's Internet usage. Accordingly, Owner recommends that Users of this Site use parental control protections, such as computer hardware, software or filtering devices which may help users limit minors' access to harmful Materials.

The Owner does not knowingly collect or use any personal information from children (minors younger than 18) through the Site. If the User is a parent and believes the Owner may have inadvertently collected such information from User's child, please notify the Owner immediately by sending him written communication

via mail to:
Smart Kidz Club, Inc.
2306 Porter Road
Bear, Delaware 19701

or an email to:
info[at]smartkidzclub.com.

Alternatively, User may contact Owner via telephone at 302.507.7171.

If User suspects any website that User views may be engaging in unlawful activities involving minors, User is encouraged to report those websites to www.asacp.org.

Commercial Site

A User acting on behalf of an employer or entity, acknowledges that it is authorized to do so and that it may be sharing certain corporate information with the Site and other users. As further set forth in the Terms and Conditions, all Users also acknowledge that they have permission to utilize the Site in this capacity.

Additional Information

If Users have any questions about this Privacy Policy, please feel free to contact the Owner via email at info[at]smartkidzclub.com.

California Residents

Pursuant to California Civil Code Section 1789.3, California residents are hereby advised of the following: (a) Owner is located at 2306 Porter Road, Bear, Delaware 19701 and can be reached via telephone at 302.838.0146; (b) Users of the Site are notified in advance of any applicable charges resulting from or related to their use of the Site or its

services; (c) consumers may contact Owner at the address or telephone number indicated above to resolve a complaint or receive further information regarding any aspect of the services provided by the Site; and (d) the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs may be contacted in writing at 1625 North Market Boulevard, Suite N 112, Sacramento, California 95834 or via telephone at 800-952-5210.